Brazoria County District Court

Cause No. 2023-CV-0028

Marcus Davidson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	November 26, 2023
Plaintiff's counsel:	Laura Bryant, Dunn & Acosta LLP

PARTIES

Plaintiff Marcus Davidson is an individual residing in Texas who was operating a personal vehicle at the time of the incident described below. Defendant is an automobile insurance company authorized to write policies in the State of Texas and doing business in Pearland, Texas. Defendant may be served through its registered agent in accordance with the Texas Rules of Civil Procedure.

FACTS

On February 7, 2023, Plaintiff was lawfully parked and stationary in a commercial parking lot in Pearland, Texas. While Plaintiff's vehicle was in that position, a second vehicle insured under a policy issued by Defendant backed out of an adjacent space and struck the driver's side of Plaintiff's vehicle. The impact was sudden and forceful. Plaintiff reported the collision to Defendant promptly and provided the information requested, including a description of the damage and the circumstances of the loss. Plaintiff has since submitted a claim for bodily injury and property damage under the applicable coverage.

NEGLIGENCE

The operator of the insured vehicle owed a duty to exercise ordinary care when backing a vehicle in a parking lot, including keeping a proper lookout and yielding to vehicles and persons lwafully present. The operator breached that duty by backing into Plaintiff's vehicle without maintaining a safe lookout or waiting until the path was clear. Defendant, as the insurer of the at-fault vehicle, is liable for damages within the limits of its policy and is further responsible for handling Plaintiff's claim in good faith and in compliance with the Texas Insurance Code and the Texas Administrative Code.

DAMAGES

As a direct result of the collision, Plaintiff suffered a cervical neck strain and a lumbar back strain. Plaintiff has experienced pain, stiffness, limited range of motion, and difficulty with daily activities, and has incurred medical expenses for evaluation and treatment. Plaintiff has also lost time from work and experienced physical discomfort and mental anguish. Plaintiff seeks recovery of economic and non-economic damages in an amount of $44,000.00, tgoether with pre-judgment and post-judgment interest, court costs, and such other relief to which Plaintiff may be entitled.